

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SUMMONS

CARIDAD FIGUEROA AND AMAYA CANTERO,

Index No.:

Plaintiffs,

The Basis of Venue is:

-against-

Location of Incident

THE CITY OF NEW YORK, DETECTIVE FELIX
GARCIA, Tax No.906303, LIEUTENANT CESAR
GOMEZ, Tax No. 941024, DETECTIVE JOE GREEN Tax
No. 938612, DETECTIVE MUNIR ALHIDAMI, Tax No.
940953, DETECTIVE CHRISTOPHER HEREDIA, Tax
No. 938656, and POLICE OFFICERS JOHN DOES #s 1-
10 (names and numbers of whom are unknown at present),

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 19, 2024

Yours, etc.

David M. Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiffs
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE FELIX GARCIA, Tax No.906303,
LIEUTENANT CESAR GOMEZ, Tax No. 941024, Narcotics Borough Manhattan North
DETECTIVE JOE GREEN, Tax No. 938612, Warrant Section
DETECTIVE MUNIR ALHIDAMI, Tax No. 940953, Warrant Section
DETECTIVE CHRISTOPHER HEREDIA, Tax No. 938656, Warrant Section

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CARIDAD FIGUEROA AND AMAYA CANTERO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE FELIX
GARCIA, Tax No.906303, LIEUTENANT CESAR
GOMEZ, Tax No. 941024, DETECTIVE JOE GREEN Tax
No. 938612, DETECTIVE MUNIR ALHIDAMI, Tax No.
940953, DETECTIVE CHRISTOPHER HEREDIA, Tax
No. 938656, and POLICE OFFICERS JOHN DOES #s 1-
10 (names and numbers of whom are unknown at present),

Defendants.

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Plaintiffs CARIDAD FIGUEROA AND AMAYA CANTERO, by their attorneys, Jacobs
& Hazan, PLLC, as and for their Verified Complaint herein allege, upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiffs allege that on August 19, 2021, at approximately 8:00 am, after defendants harassed and threatened plaintiffs for several months, defendants unlawfully entered and searched their home, located at 819 West 180th Street, Apt. 54, New York, NY. Defendants forcefully entered the apartment without consent, a warrant, or any legal justification, unlawfully searched and tore apart their apartment leaving a mess that took many days to clean up and left plaintiffs terrified and suffering from extreme emotional distress. The officers alleged that they were searching for an individual who never lived in that apartment and that the officers had no objective factual basis to believe was present in the apartment. Those officers that did not physically enter the apartment and/or touch either plaintiff but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene. Plaintiffs were deprived of their

Constitutional and common law rights when the individual defendants unlawfully entered and searched their apartment and subjected them to the use of excessive force while entering the apartment in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff CARIDAD FIGUEROA is a resident of the state of New York.

3. Plaintiff AMAYA CANTERO is a resident of the state of New York.

4. Defendant DETECTIVE FELIX GARCIA, Tax No.906303, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. Defendant DETECTIVE FELIX GARCIA, Tax No.906303, was at all times relevant herein, assigned to the Warrant Section.

6. Defendant DETECTIVE FELIX GARCIA, Tax No.906303, is being sued in his individual and official capacity.

7. Defendant LIEUTENANT CESAR GOMEZ, Tax No. 941024, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Defendant LIEUTENANT CESAR GOMEZ, Tax No. 941024, was at all times relevant herein, assigned to the Warrant Section and is presently assigned to the Narcotics Borough Manhattan North command.

9. Defendant LIEUTENANT CESAR GOMEZ, Tax No. 941024, is being sued in his individual and official capacity.

10. Defendant DETECTIVE JOE GREEN, Tax No. 938612, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. Defendant DETECTIVE JOE GREEN, Tax No. 938612, was at all times relevant herein, assigned to the Warrant Section.

12. Defendant DETECTIVE JOE GREEN, Tax No. 938612, is being sued in his individual and official capacity.

13. Defendant DETECTIVE MUNIR ALHIDAMI, Tax No. 940953, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. Defendant DETECTIVE MUNIR ALHIDAMI, Tax No. 940953, was at all times relevant herein, assigned to the Warrant Section.

15. Defendant DETECTIVE MUNIR ALHIDAMI, Tax No. 940953, is being sued in his individual and official capacity.

16. Defendant DETECTIVE CHRISTOPHER HEREDIA, Tax No. 938656, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

17. Defendant DETECTIVE CHRISTOPHER HEREDIA, Tax No. 938656, was at all times relevant herein, assigned to the Warrant Section.

18. Defendant DETECTIVE CHRISTOPHER HEREDIA, Tax No. 938656, is being sued in his individual and official capacity

19. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

20. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

21. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

24. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

25. . By way of background, plaintiff Caridad Figueroa lives with her daughter, plaintiff Amaya Cantero in Apartment 54 at 819 West 180th Street, New York, NY.

26. Plaintiff Caridad Figueroa's mother, Iuminada lives in the same apartment building as plaintiff, but on the first floor of the building.

27. Plaintiff Caridad Figueroa's stepbrother, David Figueroa, had a warrant issued for his arrest in April 2021 and he lived with Caridad Figueroa's mother, Iuminada prior to April 2021, but he did not live at that address at the time the warrant was issued for his arrest.

28. Prior to April 2021 David Figueroa's legal address was Iuminada's apartment on the 1st floor of 819 West 180th Street, New York, New York.

29. Defendant Detective Felix Garcia of the Manhattan Warrant Squad was the lead Detective assigned to apprehension of David Figueroa, pursuant to the I-Card issued for Mr. Figueroa's arrest regarding an incident that occurred on April 24, 2021, and an out of state warrant issued for his arrest because he violated parole.

30. Defendants Sergeant Cesar Gomez and Detective Joe Green, both assigned to the Manhattan Warrant Squad, assisted Defendant Detective Felix Garcia with the apprehension of David Figueroa.

31. Defendant Detective Felix Garcia understood that David Figueroa once lived in his mother's apartment located on the first floor of 819 West 180th Street, New York, NY, but during his apprehension of David Figueroa Defendant Detective Felix Garcia also decided to unlawfully enter and search for David Figueroa in Plaintiffs' apartment, apartment 54, without a warrant, consent, or any legal justification to enter or search their apartment.

32. Defendant Detective Felix Garcia decided to unlawfully enter and search for David Figueroa in Plaintiffs apartment because he knew David Figueroa's stepsister, plaintiff Caridad Figueroa, lived in that apartment.

33. On May 25, 2021, defendants posted Wanted posters in 819 West 180th Street, New York, NY, advising that David Figueroa was wanted for attempted murder and possession of a firearm and requested information about where he could be located.

34. On May 25, 2021, and June 23, 2021, defendants searched for David Figueroa at his mother's apartment on the first floor of 819 West 180th Street, New York, NY and then immediately after searching for him at his mother's apartment they went to plaintiffs' apartment.

35. On May 25, 2021, at 7:45 am defendants began kicking the front door of plaintiffs' apartment located at 819 West 180th Street, Apt. 54, New York, New York.

36. Plaintiff Caridad Figueroa's sister called Caridad Figueroa to tell her that the police were at her door, knocking on her door, but plaintiff Caridad Figueroa told her sister that she was not going to let the police officers into her apartment.

37. Plaintiff Caridad Figueroa's sister called plaintiff Caridad Figueroa back a few minutes later and told her that the police had a device to open the front door of Caridad's apartment, and they were going to use it if she did not let them in.

38. Plaintiff Caridad Figueroa spoke with defendants through the front door of her apartment and told defendants that she was not dressed and that she was not going to open her door because the person the police were looking for was not present in her apartment.

39. Defendants told plaintiff Caridad Figueroa that they had a warrant to come into her apartment and search for her stepbrother.

40. Plaintiff Caridad Figueroa asked the defendants if she could see the warrant and the defendants told her that they would show her the warrant if she opened the front door of her apartment.

41. Plaintiff Caridad Figueroa opened the front door of her apartment to see the warrant that defendants claimed they had to enter her apartment and as soon as she opened the door the defendants stuck their leg in the opening to prevent her from closing the door.

42. Plaintiff Caridad Figueroa asked defendants to show her a warrant, and the defendants showed her a warrant from Utah that was for her mother's apartment on the first floor, not her apartment.

43. Plaintiff Caridad Figueroa called an attorney who works at her office to ask him whether she was required to let the defendants into her apartment and the attorney told her not to let defendants into her apartment.

44. Plaintiff Caridad Figueroa attempted to close the front door of her apartment and told the police they could not enter, but the defendants would not allow her to close the front door of her apartment.

45. Plaintiff Caridad Figueroa and the defendants had a 15-minute debate about whether the police were permitted to enter her apartment and eventually plaintiff Caridad Figueroa allowed the officers into her apartment to look for David Figueroa because the officers would not allow her to close the front door and told her they would enter anyway.

46. The officers unlawfully entered plaintiff Caridad Figueroa's apartment and unlawfully searched the entire apartment for David Figueroa.

47. The defendant officers also searched areas of the apartment where David Figueroa could not be located, including inside of drawers and in the microwave.

48. Plaintiff Caridad Figueroa would not answer any of the defendant officers' questions, and the defendants told her that she seemed like she was hiding something because she did not wish to speak with them.

49. Defendants did not locate David Figueroa inside of plaintiffs' apartment, and defendants left the apartment when they concluded their unlawful search.

50. On June 23, 2021, defendants began knocking on the front door of plaintiff Caridad Figueroa's apartment at 7:00 am.

51. Plaintiff Caridad Figueroa went to the door and asked the defendant officers through the door to show her a warrant that permitted them to enter her apartment.

52. Defendants repeatedly asked plaintiff Caridad Figueroa what she was trying to hide, and they told her they could have her criminally prosecuted if she did not open the front door of the apartment.

53. Defendants told plaintiff Caridad Figueroa that they would break down the front door of her apartment if she did not open the door for them.

54. Plaintiff Caridad Figueroa let the defendants into her apartment because she did not want them to break down the front door.

55. The defendants unlawfully entered plaintiffs' apartment, searched the entire apartment, including locations that David Figueroa could not be located such as inside of drawers, inside of items located in drawers, under plaintiff's bed and inside of plaintiff's closet.

56. Defendants did not locate David Figueroa inside of plaintiffs' apartment on June 23, 2021, and defendants left the apartment after they concluded their search.

57. On August 19, 2021, at 8:00 am, plaintiffs Caridad Figueroa and Amaya Cantero both heard knocking on the front door of their apartment and they both went to the front door.

58. The defendants told plaintiffs Figueroa and Amaya that they were going to use a battering ram to break down the front door if plaintiffs did not let them into the apartment.

59. Plaintiffs Caridad Figueroa and Amaya Cantero repeatedly told defendants to wait a minute while they got dressed because Amaya Cantero was wearing a sleeping dress and Caridad Figueroa only had a towel wrapped around her.

60. Defendants told plaintiffs that they did "not like the fact that [plaintiffs] were indecent."

61. The defendants would not wait for plaintiffs to get dressed and plaintiff Caridad Figueroa opened the front door a crack to speak with defendants, but when she opened the door, defendant Detective Felix Garcia stuck his foot in the opening to prevent plaintiff from closing the door.

62. Plaintiff Caridad Figueroa argued with the defendants for approximately 15 minutes about whether they could come into plaintiffs' apartment.

63. At no time relevant herein did plaintiffs grant the defendants permission to enter plaintiffs' apartment.

64. Defendant Detective Felix Garcia pushed plaintiff Amaya Cantero out of the way, causing her to fall to the ground in order for him to gain entry into the apartment.

65. The officers never had a valid warrant to enter plaintiffs' apartment.

66. Defendants forcefully entered plaintiffs' apartment without consent, a warrant, or any legal justification for entering the apartment on August 19, 2021.

67. Defendants searched plaintiffs' entire apartment on August 19, 2021, including inside of all of the drawers throughout the apartment and in other spaces where a person could not hide.

68. The defendants did not locate David Figueroa inside of plaintiffs' apartment on August 19, 2021, or any other time.

69. On August 19, 2021, defendants left plaintiffs apartment after they illegally and forcefully entered and searched plaintiffs' apartment and left a complete mess in the apartment that took days for plaintiffs to clean up.

70. Plaintiffs filed a complaint against defendants with CCRB on August 19, 2021, for unlawfully entering and searching their apartment and CCRB substantiated the allegations against defendants and defendants were disciplined by the NYPD.

71. David Figueroa was arrested in December 2021, and he was not arrested in the building where plaintiffs lived or at a location that had any connection to plaintiffs whatsoever.

72. All charges brought against plaintiff Eric Romulus were dismissed and sealed in their entirety and terminated in plaintiff's favor on October 19, 2021.

73. Plaintiff Eric Romulus paid \$5,000 for a private criminal defense attorney to represent him in the criminal case.

74. All charges brought against plaintiff Steve Boursiquot were dismissed and sealed in their entirety and terminated in his favor on November 24, 2021

75. At no time relevant herein did the defendants have a legal basis to enter or search plaintiffs' apartment.

76. Those officers that did not physically touch plaintiffs or enter or search plaintiffs' apartment, but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene.

77. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully entered and searched their apartment and used physical force to gain entry into the apartment in violation of the Fourth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

78. Plaintiffs suffered severe emotional distress from being harassed by defendants and from having defendants unlawfully enter and search their apartment when plaintiffs were not even fully clothed.

79. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficiently punish defendants for the misconduct they previously engaged in.

80. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

81. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

82. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because defendants knew that there would not be any consequences for violating plaintiffs' rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

83. Given defendants' histories of allegations made against them for violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time they violated plaintiffs Constitutional Rights in this case, and plaintiffs rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiffs' arrests in this case.

84. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

85. The unlawful and forceful entry into and search of plaintiffs' apartment by the individually named defendants caused plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Plaintiffs' Fourth Amendment and Fourteenth Amendment Rights**

86. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered and searched, plaintiffs' apartment, without probable cause, a warrant, consent or any legal justification, in violation of plaintiffs' right to be free and their right to have their property be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment****Rights: Excessive Force**

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The use of excessive force by defendants against plaintiff Amaya Cantero described herein was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

90. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

THIRD CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants unlawfully entered and searched plaintiffs' apartment without an objective factual legal basis to enter and search the apartment pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

98. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers unlawfully entered and searched apartments, without a warrant, consent, or any legal justification to enter and search the premises.

99. The NYPD and Defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth and Fourteenth Amendment Rights of members of the public.

100. Defendant City of New York is liable to plaintiffs for the damages he suffered stemming from the unlawful entry and search of their apartment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully and forcefully enter and search apartments of members of the public without a warrant, consent or any legal justification.

101. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

102. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because the officers knew there would not be any consequences for violating plaintiffs' rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

103. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally enter and search the homes of members of the public, without a warrant, consent or any legal basis, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, without a warrant or any legal basis, there is a pattern, policy, custom or practice of New York City Police Officers entering and searching the homes of individuals without a warrant, consent or any legal basis for them to enter the apartment..

104. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

105. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments unlawful entries and searches of homes.

106. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiffs have been deprived of their rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

107. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

JURY DEMAND

108. \Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs CARIDAD FIGUEROA and AMAYA CANTERO demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiffs each recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 19, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 19, 2024

David M. Hazan

DAVID M. HAZAN